



Anti-Bribery and Corruption Policy

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1. Introduction

This policy addresses the potential risk of bribery and corruption or inappropriate influence and ensures that Trent Education Centre (TEC) complies with the UK Bribery Act 2010 in all of its operations. Under this Act, bribery is a criminal offence. This policy includes everything stakeholders including staff, students and governors need to know about how TEC defines, detects, prevents and responds to bribery and corruption. TEC expects all stakeholders to maintain high standards of integrity, transparency and accountability at all times.

All staff, governors, independent members of the Audit and Risk Committee and any stakeholders acting on behalf of TEC are required to read this policy, which defines bribery and explains the steps TEC takes to detect, prevent and respond to it. Bribery is considered a form of fraud under the Fraud Act 2006, and this policy should be read alongside the Fraud Management Policy.

2. Purpose and Scope

This policy ensures that TEC remains fully vigilant of any potential or actual bribery or corruption and is compliant with the UK Bribery Act 2010. All of the following stakeholders are expected to comply with this policy:

- All TEC employees
- Senior Management Team members
- Governors and committee members
- Students
- Contractors, consultants and suppliers
- Partner organisations delivering TEC programmes
- Any individual acting on behalf of TEC

The scope of this policy includes:

- Offering, giving, requesting, or receiving bribes
- Improper influence in academic, financial, procurement, or governance decisions
- Gifts and hospitality that may create a perception of bribery
- Conflicts of interest that may lead to improper advantage
- Misuse of position for personal gain
- Failure to disclose relationships or benefits that may compromise impartiality

This policy ensures TEC is prepared to meet OfS Condition E8.2 (fraud and inappropriate use of public funds) and E8.3 (accuracy of data and integrity of governance processes).

3. Aims and Objectives

The main aims of this policy are to ensure that there is a transparent and accountable process for preventing, detecting and responding to bribery at the earliest opportunity in order to prevent the damage that bribery and corruption may cause and to ensure that TEC remains legally compliant.

The objectives of this policy are to ensure that:

- All stakeholders understand what bribery is and how to avoid it.
- All stakeholders know how to report suspected bribery safely and confidentially.
- All stakeholders understand that bribery is a criminal offence under the UK Bribery Act 2010.
- TEC maintains robust internal controls, segregation of duties, and transparent decision-making to prevent bribery.
- TEC maintains clear rules on gifts and hospitality, including thresholds and disclosure requirements.
- TEC conducts due diligence on suppliers, contractors, and partners to prevent bribery risks.
- Allegations of bribery are investigated promptly and fairly.
- Disciplinary action is taken where bribery has occurred, including referral to the Police where appropriate.
- TEC maintains a culture of integrity, openness, and accountability across all operations.
- TEC meets OfS expectations for preventing fraud, bribery, and misuse of public funds.

4. Understanding Bribery

Bribery is a criminal offence under the UK Bribery Act 2010. It involves offering, giving, requesting, or receiving any financial or non-financial advantage with the intention of influencing a person's actions or decisions improperly.

Bribery may occur in academic, financial, procurement, recruitment, partnership, or governance contexts. TEC adopts a zero-tolerance approach to bribery in all forms, including the following:

Action	Explanation	Example
Giving a bribe	Offering money, gifts, favours, or advantages to obtain an unfair benefit	Offering a tutor money for higher grades
Receiving a bribe	Accepting money, gifts, or favours in exchange for improper advantage	A staff member accepts payment to approve a student's mitigating circumstances claim or pass the assessment.
Bribing a foreign official	Offering benefits to overseas officials to secure business advantage	TEC staff offers a government official a bribe for sponsoring students with government funds.
Corporate failure to prevent bribery	Organisations can be held criminally liable if they do not have adequate procedures to prevent bribery.	Creating and updating this policy and ensuring all staff read and follow it.

Bribery is considered a form of fraud under the Fraud Act 2006 (false representation, abuse of position) and must be reported and investigated under TEC's Fraud Management Policy.

5. TEC's Anti-Bribery Procedures

TEC maintains comprehensive anti-bribery procedures that staff, governors, students and other stakeholders must comply with. These procedures are designed to prevent, detect, and respond to bribery across all its operations as follows:

- Clear governance oversight by the Board of Governors and Audit & Risk Committee.
- Mandatory annual training for all staff and stakeholders.
- Segregation of duties in procurement, recruitment, assessment, and financial authorisation.
- Due diligence on suppliers, contractors, and prospective partners.
- Transparent decision-making supported by documented audit trails.
- Clear reporting process for allegations of suspected bribery (See the Fraud Management Policy).
- Protection for whistleblowers under the Public Interest Disclosure Act 1998 (See the TEC Whistleblowing Policy).
- Annual review of bribery risks and controls.

6. Risk Evaluation

TEC's Senior Management Team (SMT) conducts an annual evaluation of bribery risks across academic, financial, procurement, partnership, and governance activities. Risk evaluation includes:

- Reviewing bribery risks in procurement and supplier relationships
- Assessing bribery risks in recruitment and promotions
- Reviewing academic integrity risks (e.g., bribery for grades)
- Addressing risks of bribery in relation to any contracts or agreements established between TEC and other organisations
- Ensuring that all conflicts of interest are checked and monitored
- Ensuring that whistleblowers are able to report potential cases of bribery without fear of repercussions

The Audit & Risk Committee (ARC) monitors TEC's Risk Register and conducts an annual audit to evaluate the risk of bribery.

7. Due Diligence

The Head of Partnerships and Compliance (HPC) will conduct due diligence for any potential partnership whilst the Head of Operations (HO) will ensure that all suppliers are engaged in compliance with this policy and that potential bribery is investigated.

The HPC and HO will conduct the following checks:

- Ensure that any suppliers or contractors are engaged through fair and transparent selection processes and that anyone with a conflict of interest is not involved in the selection process
- Ensure that potential partners have their own anti-bribery policies or follow this policy
- Ensure that no stakeholder receives gifts, payments, or hospitality to an extent that may influence their decisions
- Ensure procurement decisions are based on at least two quotations and transparent dual authorisation

The Audit & Risk Committee (ARC) reviews due diligence documentation for major agreements and partnership arrangements.

8. Investigating Concerns

Any suspected act of bribery must be reported immediately by following Section 10 Reporting Fraud in the Fraud Management Policy.

Bribery investigations may require access to all the following policies:

- TEC's Fraud Management Policy
- TEC's Whistleblowing Policy
- TEC's Staff Disciplinary Policy
- TEC's Student Disciplinary Policy

IN accordance with the Fraud Management Policy, the Fraud Panel may refer cases to the Police where appropriate and/or appoint a Fraud Investigator (FI) to investigate bribery allegations.

9. Whistleblowing

TEC protects all individuals who report suspected bribery under the Public Interest Disclosure Act 1998. Whistleblowers may report bribery involving:

- Staff
- Governors
- Contractors
- Suppliers
- Students
- Senior Management Team members

Whistleblowers are protected from retaliation, victimisation, or disadvantage (See the Whistleblowing Policy). All reports are handled confidentially and passed to the Fraud Panel within 24 hours (See the Fraud Management Policy).

10. Gifts & Hospitality

TEC recognises that modest gifts and hospitality may occur in professional contexts. However, gift and hospitality must never influence or appear to influence professional judgement.

- Staff must not accept gifts valued over £50 without written approval from a member of the Senior Management Team (SMT).
- Gifts valued over £50 require formal approval and must be recorded.
- Gifts under £50 do not need to be disclosed unless the recipient believes the gift was intended to influence their professional actions.
- Multiple gifts from the same source must be combined to determine total value.
- Hospitality may be accepted only when necessary for TEC business and must not be for personal benefit.
- Staff must not accept gifts or hospitality from students that may compromise academic integrity.
- Staff must not accept gifts or hospitality from suppliers during procurement processes.

All gifts over £50, including the combined value of multiple gifts from the same person or group of people (e.g. a class of students) must be disclosed using the TEC Gift Disclosure Form (Appendix 1).

11.Records & Oversight

The Board of Governors approves and oversees this policy. The Audit & Risk Committee maintains a register of:

- Disclosed gifts
- Hospitality provided
- Bribery allegations
- Bribery investigations
- Disciplinary outcomes

This register informs TEC's annual risk planning and compliance review.

12.Annual Review

This policy is reviewed annually by:

- The Senior Management Team
- The Audit & Risk Committee
- The Board of Governors

It may be updated at any time in response to legal, regulatory, or OfS requirements.

Appendix 1: TEC Gift Disclosure Form

TEC Gift Disclosure Form

Please complete this form if you (or a member of your family) have received a gift or combination of gifts valued over £50 from a student or group of students, supplier, contractor, partner, or any individual connected with TEC. Gifts or combinations of gifts under £50 do not need to be disclosed unless you believe they were intended to influence your professional actions. Multiple gifts from a single source or group of people (e.g. a class of students) should be disclosed if collectively they amount to more than £50 in value.

Your Name:			
Role:			
Who the gift is from			
Describe the gift			
Estimated value			
Why were you given this gift?			
Do you believe the gift is intended as a bribe?	YES ☐	NO ☐	
Declaration	I certify that I did not solicit this gift.		
Signature			
Date: Completed forms must be submitted to the Head of Partnerships and Compliance and will be recorded by the Executive Assistant and reviewed by the Audit & Risk Committee.			